

25CHCV03708 25CHCV03708

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-08-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF43%2C08%2F25%2F2026

Source SHA-256: 086cae49d9cf7a657588f688dba6d00acd04c260d74f4446236f2b02acae91a0

Case Number: 25CHCV03708 Hearing Date: August 25, 2026 Dept: F43

Dept. F43

Hearing Date: 08-25-26

Case # 25CHCV03708, Ohler Corp.

v. City Electric Supply Co., et al.

Trial Date: 05-21-29

MOTION TO COMPEL

RESPONSES TO DISCOVERY

MOVING PARTY: Plaintiff Ohler Corporation

RESPONDING PARTY: Defendant John McCraw Electric Company, LLC

RELIEF REQUESTED

Order compelling defendant John McCraw

Electric Company's objection-free responses to Plaintiff's first sets of form interrogatories, special interrogatories, and requests for production, and deeming the matters in the Plaintiff's first set of requests for admission as admitted and true. Order imposing \$5,935

in monetary sanctions against defendant John McCraw Electric Company and its counsel of record, jointly and severally.

RULING: Motion is moot. The court reserves ruling on Plaintiff's sanctions request pending further arguments at the motion hearing.

SUMMARY OF ACTION

On October 16, 2025, plaintiff Ohler Corporation (Plaintiff) filed this action against several defendants, seeking damages resulting from a failed generator Plaintiff purchased at defendant John McCraw Electric Company's (McCraw Electric) suggestion. According to Plaintiff, McCraw Electric is an agent of defendant City Electric Supply Company, Inc. Plaintiff has also identified Generac Power Systems, Inc. as a defendant. Plaintiff asserts breaches of the express warranty of merchantability, the implied warranty of merchantability, the implied warranty of fitness, and contract, and negligence. McCraw Electric filed an amended answer on January 27, 2026. On January 28, 2026, McCraw Electric filed a cross-complaint against its co-defendants.

On April 30, 2026, Plaintiff electronically served McCraw Electric with its first sets of form interrogatories, special interrogatories, requests for admission, and request for production. (Declaration of Theodore M. Hankin ¶ 2, Exhs. A-E.) Responses were due no later than May 1, 2026. At defense counsel's request, Plaintiff's counsel extended the response deadline to June 24, 2026. (Hankin Decl. ¶ 3.) As of July 16, 2026, no responses were received.

On July 16, 2026, Plaintiff filed the instant motion to compel defendant McCraw Electric's objection-free responses to the form interrogatories, special interrogatories, and request for production and to deem the matters in the requests for admissions as true and admitted. Plaintiff also seeks to impose \$5,935 in sanctions against defendant McCraw Electric and its counsel.

On August 12, 2026, defendant McCraw Electric filed an opposition, asserting objection-free, verified responses are being finalized, a supplemental declaration will be filed once the responses are served, and the sanctions request should be denied or reduced substantially.

On August 17, 2026, Plaintiff filed a reply, asserting objection-free responses were served on August 14, 2026, but included no verifications. Thus, the unverified responses are the equivalent of no responses and the court should award sanctions of \$5,935.

On August 18, 2026, defendant McCraw Electric filed a supplemental declaration, verifications and revised responses were served that same day. (Supplemental Declaration of Erik B. Bedrosian, Exhs. C, D.)

ANALYSIS

A. Compelling

Discovery Responses and Deeming Requests for Admission As True and Admitted

A demanding party may move to compel responses to requests for production where the responding party fails to provide any responses. (Code Civ. Proc., §§ 2031.300, subd. (b), 2030.290, subd. (b).) The demanding party must show the requests were properly served, that the time to respond expired, and no response has been served. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403-404.) The responding party must respond separately to each demand by agreeing to comply, stating an inability to comply, or objecting to all or part of the demand. (Code Civ. Proc., § 2031.210, subd. (a).) The responding party must serve responses within 30 days after the requests for production are served or according to an agreed upon deadline extension. (Code Civ. Proc., § 2031.260, subd. (a)(1)-(3).) Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

A propounding party may move to compel responses to form or special interrogatories where the responding party fails to provide any responses. (Code Civ. Proc., § 2030.290, subd. (b).) The propounding party must show the interrogatories were properly served, that the time to respond expired, and no response has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.) Unless excused by a protective order, the responding party must serve responses (an answer, objection, or election to allow inspecting or copy records) within 30 days after the interrogatories are served or according to an agreed upon deadline extension. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.270.) Failing

to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

When a responding party fails to timely serve answers to requests for admission, the demanding party may move for an order that “the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction.” (Code Civ. Proc., § 2033.280, subd. (b).) Responses to requests for admissions are due 30 days from the date the requests were served on the responding party. (Code Civ. Proc., § 2033.250, subd. (a).) Failure to respond within 30 days or a deadline set by the parties waives any objection, including those based on privilege or work product protection. (Code Civ. Proc. § 2033.280, subd. (a).)

Based on the moving papers, Plaintiff properly served the discovery requests, but defendant McCraw Electric did not serve responses by the original deadline or the deadline extension. But McCraw Electric served objection-free, verified responses on August 18, 2026.

Defense counsel insists the delayed responses were due to mistake, inadvertence, and excusable neglect.

(Declaration of Erik B. Bedrosian ¶¶ 5-7.) Defense counsel informed Plaintiff he was behind on the discovery responses due to trial preparation in several other matters but was working to complete the responses. McCraw Electric served unverified, objection-free responses on August 14, 2026, as a showing of good faith because Mr. John McCraw was out of office, on a trip without cell service, and unavailable to sign verifications at that time.

(Suppl. Bedrosian Decl. ¶¶ 4-5; Reply at p. 2:12-13.) Three days later, defense counsel spoke with Mr. McCraw about clarifying revisions in the responses, told Plaintiff's counsel about the revisions, and offered Mr. McCraw for a deposition. (Id. ¶¶ 6-7, Exh. B.) McCraw Electric then served the revised, objection-free, verified responses on August 18, 2026. (Id., Exhs. C-D.)

Although defense counsel has demonstrated his efforts to prepare the discovery after Plaintiff filed the instant motion and mentioned trial preparation, counsel fails to state when the trial preparation occurred and what efforts were made between June 24, 2026 and July 16, 2026, to prepare the responses and secure Mr. McCraw's signature for verification before he was out of town without cell phone service.

Thus, defendant McCraw Electric fails to provide a substantial justification for not serving discovery responses before Plaintiff filed the

instant motion.

Due to the late-served responses, Plaintiff's motion is moot. But Plaintiff is still entitled to monetary sanctions. (Masimo Corp. v. The Vanderpool Law Firm, Inc. (2024) 101 Cal.App.5th 902, 909 fn. 9 [“[F]orcing a party to resort to the court to get discovery is . . . sanctionable behavior.”].)

B. Sanctions

Plaintiff asks the court to impose \$5,935 in monetary sanctions against defendant McCraw Electric and its counsel of record, jointly and severally. (Hankin Decl. ¶ 4.)

The court must impose sanctions against a party or attorney, or both, who unsuccessfully makes or opposes a motion to compel responses to interrogatories or requests for production, unless the court finds that the sanctioned party “acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) The court must impose sanctions against the party or attorney, or both, whose failure to serve timely responses led to a motion to deem requests for admissions admitted, unless the court finds that the responding party served code-compliant proposed responses to the requests before the motion hearing. (Code Civ. Proc., § 2033.280, subd. (c).) “The court may award sanctions under the Discovery Act in favor of the party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

Attorney Theodore M. Hankin charges \$675 per hour, and his paralegal charges \$250 per hour. (Hankin Decl. ¶ 5.) The request includes: 5.0 hours of Mr. Hankin's time; 10.0 hours of the paralegal's time; and a \$60 filing fee.

Although the court finds the hourly rates and the \$60 filing fee are reasonable, counsel has failed to provide a breakdown of how the 15.0 hours of paralegal and attorney work were incurred.

Therefore, the court reserves its ruling on Plaintiff's sanctions request pending oral arguments explaining the time actually incurred in relation to the instant motion. At the motion hearing, Plaintiff's counsel should be prepared to provide the court with a breakdown of how the 15.0 hours were incurred.

CONCLUSION and ORDER

Plaintiff's motion is moot.

The court reserves ruling on Plaintiff's sanctions request pending further arguments at the motion hearing.

Plaintiff Ohler Corporation to give notice.